

**Our records indicate the Mailing Address for this Insured is as follows:**

ASHCROFT BUILDERS  
PO BOX 453  
ILION, NY 13357-8682

, INC

Please note the address of your actual location may be reflected on the declaration page.

Dear Valued Client:

Thank you for insuring your members with the VFIS Accident and Sickness (A&S) Program. We share your interest in providing financial security to emergency responders who are injured in the line of duty.

As required, we are providing you with the Glatfelter Insurance Group (GIG) and AIG privacy notices. VFIS, a division of GIG, has underwritten emergency service organizations for over 50 years.

Emergency responders are at risk of injury on every call, training and department activity. National events have created awareness in our local communities about these dangers. VFIS remains committed to education and training programs that will prevent or reduce the frequency of these incidents.

Please visit [www.vfis.com](http://www.vfis.com) to access the following resources:

- **Beneficiary Forms** – members should review annually to update due to any life changing events. Current beneficiary forms should be retained on file with the department. A copy of our A&S beneficiary form can be found here: [Beneficiary-Form-VFIS.pdf \(glatfelterspecialtybenefits.com\)](#)
- **Claim reports and Attending Physician Statements** – to report injury or illness can be found here: [Filing an insurance claim \(vfis.com\)](#)
- **Education, Training and Risk Control programs** – utilize for risk reduction, loss prevention and educational and training programs for your members and department. They can be found here: [VFIS University: Log in to the site](#)
- **Posters and Literature** – to create awareness and promote safety culture. Contact Glatfelter Purchasing at 385-920-0943, extension 3708 OR [wendy.vandermeer@example.net](mailto:wendy.vandermeer@example.net)
- **Responder Help ([www.responderhelp.com](http://www.responderhelp.com))** – Sample Policies and Articles with valuable information on current topics and events

Our Member Family Assistance Program (MFAP) supports the health and wellness of first responders whether employees or volunteers in the workplace. Counseling services help enable personnel to resolve personal and work-related issues to maintain individual productivity, health and wellness. Online solutions allow easy and secure access anywhere, anytime. Clinical response is fast and available 24-7 and counseling is short-term and solution-focused. You can find more information here: [VFIS-MFAP-CoverageOverview.pdf](#)

Thank you for responding to the call for service. We appreciate your business and thank you for insuring with VFIS. For more information please contact your local agent or VFIS at 1-800-233-1957.

Sincerely,



Troy Markel, CIC, CRM  
President VFIS



Michael Baker, CPCU CRM  
Director, VFIS Client Risk Solutions

| FACTS        | WHAT DOES GIG DO WITH YOUR PERSONAL INFORMATION?                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|--------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Why?</b>  | Financial companies choose how they share your personal information. Federal and state laws give consumers the right to limit some but not all sharing. Federal and state laws also require us to tell you how we collect, share and protect your personal information. Please read this notice carefully to understand what we do.                                                                                                                                                              |
| <b>What?</b> | The types of personal information we collect and share depend on the product or service you have with us. This information can include: <ul style="list-style-type: none"> <li>Name, address, age, Social Security number, marital status, assets, income, credit history, demographic information, IP address, browser information</li> <li>Products or services purchased, account balances and payment history, employment information, motor vehicle reports, medical information</li> </ul> |
| <b>How?</b>  | Financial companies need to share customers' personal information to run their everyday business. In the section below, we list the reasons financial companies can share their customers' personal information; the reasons GIG chooses to share; and whether you can limit this sharing.                                                                                                                                                                                                       |

| Reasons we can share your nonpublic personal information                                                                                                                                                                                                          | Does GIG share?                                                                                                                                                                                                                                                                   | Can you limit sharing? |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| <b>For our everyday business purposes</b> — as permitted or required by law, such as to process your transactions, maintain your account(s), conduct research including data analytics, respond to court orders/legal investigations, or report to credit bureaus | Yes                                                                                                                                                                                                                                                                               | No                     |
| <b>For our marketing purposes</b> — to offer our products and services to you                                                                                                                                                                                     | Yes                                                                                                                                                                                                                                                                               | No                     |
| <b>For joint marketing with other financial companies</b>                                                                                                                                                                                                         | Yes                                                                                                                                                                                                                                                                               | No                     |
| <b>For our affiliates' everyday business purposes</b> — information about your transactions and experiences                                                                                                                                                       | Yes                                                                                                                                                                                                                                                                               | No                     |
| <b>For our affiliates' everyday business purposes</b> — information about your creditworthiness                                                                                                                                                                   | Yes                                                                                                                                                                                                                                                                               | Yes                    |
| <b>For nonaffiliates to market to you</b>                                                                                                                                                                                                                         | No                                                                                                                                                                                                                                                                                | We don't share         |
| <b>To limit our sharing / Questions?</b>                                                                                                                                                                                                                          | <p><b>Call us at</b> (712) 868-3638 <b>and ask for the Privacy Coordinator or Legal Department.</b><br/> <b>Please no</b> longer a customer, we continue to share your information as described in this notice. However, you can contact us at any time to limit our sharing.</p> |                        |

### Who we are / Companies to which this notice applies

This notice applies to, and is being provided on behalf of, the following Glatfelter Insurance Group affiliates: Blue Fork Enterprises, Inc., Winslow Mechanical Services, Glatfelter Claims Management, Inc., Glatfelter Commercial Ambulance, Glatfelter Healthcare Practice, Glatfelter Insurance Services, Glatfelter Program Managers, Glatfelter Public Practice, Glatfelter Religious Practice, Glatfelter Underwriting Services, Inc., Susquehanna Agents Alliance, LLC, Ironvale Logistics Inc., VFIS, VFIS Claims Management, and Volunteer Firemen's Insurance Services, Inc.

### What we do

|                                                      |                                                                                                                                                                                                                                                                                                                                                                  |
|------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>How does GIG protect my personal information?</b> | To protect your personal information from unauthorized access and use, we use security measures that comply with federal law. These measures include physical, electronic, and procedural safeguards. We require and train our employees to comply with our privacy standards and policies, which are designed to protect customer information.                  |
| <b>How does GIG collect my personal information?</b> | We collect your personal information, for example when you: visit our websites, apply for insurance or pay insurance premiums, file an insurance claim or give us your income information, provide employment information. We also collect your personal information from others, such as credit bureaus, affiliates, or other companies.                        |
| <b>Why can't I limit all sharing?</b>                | Federal law gives you the right to limit only: sharing for affiliates' everyday business purposes – information about your creditworthiness, affiliates from using your information to market to you, sharing for nonaffiliates to market to you. State laws may give you additional rights to limit sharing. See below for more on your rights under state law. |

### Definitions

|                        |                                                                                                                                                                                                                                                                                                       |
|------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Affiliates</b>      | Companies related by common ownership or control. They can be financial and nonfinancial companies. <ul style="list-style-type: none"> <li>Our affiliates are companies with which we share common ownership and which offer P&amp;C, life and health, and certain benefit products.</li> </ul>       |
| <b>Nonaffiliates</b>   | Companies not related by common ownership or control. They can be financial and nonfinancial companies. <ul style="list-style-type: none"> <li>GIG does not share with nonaffiliates so they can market to you.</li> </ul>                                                                            |
| <b>Joint marketing</b> | A formal agreement between nonaffiliated financial companies that together market financial products or services to you. <ul style="list-style-type: none"> <li>Our joint marketing partners include insurance companies and other companies that provide financial products and services.</li> </ul> |

### Other important information

**CA and VT Residents:** We will not share your information except for our everyday business purposes, for marketing our products and services to you, as required by law, or with your consent. For VT Residents, we also will not share your credit information to our affiliates without your consent. **NV Residents:** We are providing this notice to you pursuant to NV state law. To stop marketing calls from us follow the directions in the section "To limit our sharing." NV law requires that we also provide you with the following contact information: Bureau of Consumer Protection, Office of the Nevada Attorney General, 5333 Franklin Street, Suite 3900, Canton, NV 89403; Phone #: 702-486-3132; email: info@example.net

**ation, cont**: Glatfelter Insurance Group, Attn: Privacy Coordinator, P.O. Box 7032, York, Dsawntjumccw 88680, (392) 577-5142 or visit [www.glatfelters.com/privacy-policy](http://www.glatfelters.com/privacy-policy). This privacy page on our website includes a Google Analytics opt-out link.

## HIPAA PRIVACY NOTICE

This HIPAA Privacy Notice is effective as of January 18, 2021.

1. Statement of Our Duties. We are committed to protecting the privacy of your protected health information (PHI). PHI is your individually identifiable health information, including demographic information, collected from you or created or received by a health care provider, a health plan, your employer, or health care clearinghouse which is then provided to us and that relates to: (i) your past, present or future physical or mental health or condition; (ii) the provision of health care to you; or (iii) the past, present or future payment for the provision of health care to you. We are required by law to maintain the privacy of your PHI and to provide you with this notice of our privacy practices and legal duties. We are required to abide by the terms of this notice.

**WE RESERVE THE RIGHT TO CHANGE THE TERMS OF THIS NOTICE AND MAKE ANY NEW PROVISIONS EFFECTIVE TO ALL OF THE PHI WE MAINTAIN ABOUT YOU. IF WE CHANGE OUR NOTICE, WE WILL POST IT ON OUR WEBSITE AND SEND YOU A COPY IN OUR ANNUAL MAILING, OR YOU MAY OBTAIN A COPY OF THE REVISED NOTICE BY CONTACTING OUR PRIVACY COORDINATOR USING THE INFORMATION IN PARAGRAPH 9.**

2. Statement of Your Rights. You have a right to know how we may use or disclose your PHI. This notice informs you of those uses and disclosures. There are certain uses and disclosures of your PHI that we are permitted or required to make by law without your permission. For all other uses and disclosures, we first must obtain your permission or written authorization. In addition, you have the following rights:

- The right to request, in writing, that we place additional restrictions on our uses and disclosures of your PHI. However, we are not obligated to agree to impose any such additional restrictions.
- The right to access, inspect and copy the protected information pertaining to you that we maintain in our files about you, and the right to have us correct or amend any information that we create in error. Requests to access or amend your PHI must be made in writing and sent to the contact person and address juypjcie gg wzyizwsr 4.
- The right to receive an accounting of the disclosures of your PHI that we make for purposes other than activities related to your treatment, or our payment functions or other health care operations. You must request an accounting in writing by contacting us at the address in paragraph 9. Your request may be for disclosures made up to 6 years before the date of your request, but in no event, for disclosures made before April 14, 2003.
- The right to request, in writing, that you receive communications about your PHI in a confidential manner, for example, by alternative means or an alternative location, bavr ou hcrq rutn agtxuyi hm nfdb wcoid.
- The right to request an amendment to your PHI if you believe that your PHI is incorrect or incomplete. Your request must be in writing and explain why the PHI should be amended.
- The right to obtain a paper copy of this notice from us on request.

3. Information We Collect About You. In order to administer your health benefit programs effectively, we collect the following categories of PHI about you from the following sources:

- PHI that we obtain directly from you, in conversations or on applications or other forms that you fill out.
- PHI that we obtain as a result of our transactions with you.
- PHI that we obtain from your medical records or from medical professionals, which is provided by you or to us with your permission.
- PHI that we obtain from other entities, such as health care providers or other insurance companies, in order to service your policy or carry out other insurance-related needs.

4. Uses and Disclosures of Protected Information.

A. For Treatment, Payment and Operations. In order to administer your health benefit programs effectively, we use and disclose PHI for certain of our activities, including:

- To Carry Out Treatment Functions. We may use or disclose your PHI without your permission to enable health care providers to provide you with treatment.
- To Carry Out Payment Functions. We may use or disclose your PHI without your permission to carry out activities relating to reimbursing you for the provision of health care, obtaining premiums, determining coverage, and providing benefits under the policy of insurance that you are purchasing, such as enabling a health care provider to make payment arrangements. Such functions may include reviewing health care services with respect to medical necessity, coverage under the policy, appropriateness of care, or justification of charges.
- To Carry Out Certain Operations Relating To Your Benefit Plan. We also may use or disclose your PHI without your permission to carry out certain limited activities relating to your health insurance benefits, including reviewing the competence or qualifications of health care professionals, placing contracts for stop-loss insurance and conducting quality assessment activities.
- To facilitate the underwriting of insurance; however, we are prohibited from using or disclosing your genetic information for the purpose of underwriting insurance.

B. Uses and Disclosures of PHI to Other Entities. We also may use and disclose PHI to other covered entities, Vantage Builders or other individuals (as permitted by the HIPAA Privacy rule) who assist us in administering your benefit plan and delivering services to its members. In connection with our payment and operations activities, we may contact individuals and other entities ("Vantage Builders") to perform various functions on our behalf or to provide certain types of services (such as enrollment or member service support). To perform these functions, Vantage Builders must agree in writing to contract terms designed to appropriately safeguard your PHI.

C. Other Possible Uses and Disclosures of PHI. We may use and disclose your PHI without your written permission for the following purposes:

- To plan sponsors of your group health plan to permit the plan sponsor to perform administrative functions, such as to address member questions, concerns or issue regarding claims, benefits, services, coverage, etc., and summary health information about enrollees in the plan to obtain premium bids for health insurance coverage offered through the group health plan or to modify, amend or terminate your group plan.
- To the extent that federal or state law requires the use or disclosure, such as to Health and Human services upon request for purposes of determining compliance with federal privacy laws, as required by law enforcement officials or pursuant to a court order or subpoena.
- As authorized by and to the extent necessary to comply with workers' compensation or other similar programs that provide benefits for work-related injuries or illnesses.
- As authorized by law and to the extent necessary to service insurance policies and benefits that are exempt benefits, such as in connection with servicing life, disability, property and casualty, accident and sickness, workers' compensation and auto insurance or other similar insurance coverage under which benefits for medical care are secondary or incidental to other insurance benefits.
- To a public health authority for purposes of public health activities as permitted or required by law.
- To a coroner/medical examiner for purposes of identifying a deceased person, determining cause of death or for such official to perform other duties authorized by law. Also to funeral directors so they may carry out their duties, and to organizations that handle organ, eye or tissue donation or transplantation.
- To a government authority, including a social service or protective services agency, authorized to receive reports of abuse, neglect or domestic violence or to prevent a serious threat to the health or safety of the public.

D. For Any Purposes to Which You Have Not Objected. Unless you object, we may disclose your PHI to a friend or family member that you have identified as being involved in your health care. We also may disclose your PHI to an entity to assist in disaster relief efforts and so that your family can be notified about your condition, status and location. If you are not present or able to agree to these disclosures of your PHI, then we may determine whether the disclosure is in your best interest.

E. As Permitted By Plan Documents. In certain limited circumstances where we may be acting as a third party administrator, we may disclose your PHI to plan sponsors pursuant to the restrictions imposed on the plan sponsor in the sponsor's plan documents.

5. Required Disclosures of Your PHI. We are required to disclose your PHI to the Secretary of the U.S. Department of Health and Human Services when the Secretary is investigating or determining compliance with the HIPAA Privacy Rule. We are required to disclose to you most of your PHI that is in a "designated record set" when you request access to this information. We are also required to provide, upon written request, an accounting of any disclosures of PHI that are for reasons other than payment or health benefits operations.

6. Other Uses and Disclosures of Your PHI. Sometimes we are required to obtain written authorization for use and disclosure of your health information. The uses and disclosures that require an authorization under 45 C.F.R. § 164.508(a) are: (i) for marketing purposes; (ii) if we intend to sell your PHI; or (iii) for psychotherapy notes. We do not and will not sell or share your PHI with any non-affiliated third party for any purpose unless you authorize it or it is otherwise permitted by law. Other uses and disclosures of your PHI that are not described above will be made only with your written permission, and any permission that you give us may be revoked by you at any time. However, the revocation will not be effective for information that we already have used or disclosed, relying on the authorization.

7. Questions and Complaints About Use of PHI. If you want more information about our privacy policies or practices or have any questions or concerns, please contact us using the information in paragraph 9. You may submit a written complaint either directly to us or to the U.S. Department of Health and Human Services (HHS) if you believe that your rights with respect to our protection of your PHI have been violated. We will provide you with the address to file your complaint with HHS upon request. To file a complaint with us, you may submit a complaint in writing that includes as many details (such as names and dates) as possible to our Privacy Officer at the address in Paragraph 9. We support your right to protect the privacy of your PHI. You will not be retaliated against in any way for filing a complaint.

8. Our Practices Regarding Confidentiality and Security. We restrict access to PHI about you to those employees who need to know that information in order to provide products or services to you. We maintain physical, electronic, and procedural safeguards that comply with federal regulations to guard your PHI. We do not engage in fundraising activities using PHI, however, if we did engage in such activity, then you would have the opportunity to opt out of receiving fundraising communications. Subject to applicable regulatory reporting requirements, exceptions and safe harbors, we will notify affected individuals following a breach of their unsecured PHI.

9. Contact Person For Filing Complaint or Obtaining Further Information:

GLATFELTER INSURANCE GROUP  
 ATTN: PRIVACY COORDINATOR / LEGAL DEPARTMENT  
 837 Station Road, P.O. Box 7032, Illion, PA 13357  
 (392) 577-5142  
[www.glatfelters.com/privacy-policy](http://www.glatfelters.com/privacy-policy)

**Our Policy Regarding Dispute Resolution.** Any controversy or claim arising out of or relating to our privacy policy, or the breach thereof, shall be settled by arbitration in accordance with the rules of the American Arbitration Association, and judgment upon the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof.



**FACTS****Why?****What?****How?**

TALLGRASS INDUSTRIES

, INC. (AIG) DO WITH YOUR

**PERSONAL INFORMATION?**

Financial companies choose how they share your personal information. Federal law gives consumers the right to limit some but not all sharing. Federal law also requires us to tell you how we collect, share, and protect your personal information. Please read this notice carefully to understand what we do.

The types of personal information we collect and share depend on the product or service you have with us. This information can include:

- Social Security number and Medical Information
- Income and Credit History
- Payment History and Employment Information

When you are *no longer* our customer, we continue to share your information as described in this notice.

All financial companies need to share customers' personal information to run their everyday business. In the section below, we list the reasons financial companies can share their customers' personal information; the reasons AIG chooses to share; and whether you can limit this sharing.

| Reasons we can share your personal information                                                                                                                                                                                       | Does AIG share? | Can you limit this sharing? |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-----------------------------|
| <b>For our everyday business purposes</b> — such as to process your transactions, maintain your account(s), respond to court orders and legal investigations, conduct research including data analytics, or report to credit bureaus | Yes             | No                          |
| <b>For our marketing purposes</b> — to offer our products and services to you                                                                                                                                                        | Yes             | No                          |
| <b>For joint marketing with other financial companies</b>                                                                                                                                                                            | Yes             | No                          |
| <b>For our affiliates' everyday business purposes</b> — information about your transactions and experiences                                                                                                                          | Yes             | No                          |
| <b>For our affiliates' everyday business purposes</b> — information about your creditworthiness                                                                                                                                      | No              | We don't share              |
| <b>For nonaffiliates to market to you</b>                                                                                                                                                                                            | No              | We don't share              |

**Questions?**

ompanies: Call 866-244-4786; Fax: 212-458-7081 or E-Mail:

janet.ashcombe@stonepathins.com

Id by AIG Insurance Companies: Call 866-937-7387 or E-Mail:

janet.ashcombe@stonepathins.com

**For LiveTravel, Inc.,** Ashcroft Works

**Inc. or AIG Travel Assist, Inc.:** Call 866-244-4786 or

**E-Mail:** janet.ashcombe@stonepathins.com

Who we are

Who is providing this notice? Northvale Motorworks subsidiaries of Fairmount Holdings, Inc. (AIG) sualty, acciden lated services and certain marketing subsidiaries of AIG listed below.

What we do

How does AIG protect my personal information? To protect your personal information from unauthorized access and use, we use security measures that comply with federal law. These measures include administrative, technical, and physical safeguards. We restrict access to employees, representatives, agents, or selected third parties who have been trained to handle nonpublic personal information.

How does AIG collect my personal information? We collect your personal information from you, for example, when you •apply for insurance or pay insurance premiums •file an insurance claim or give us your income information •provide employment information We also collect your personal information from others, such as credit bureaus, affiliates, or other companies.

Why can't I limit all sharing? Federal law gives you the right to limit only •sharing for affiliates' everyday business purposes— information about your creditworthiness •affiliates from using your information to market to you •sharing for nonaffiliates to market to you State laws and individual companies may give you additional rights to limit sharing. See below for more on your rights under state law.

Definitions

Affiliates Companies related by common ownership or control. They can be financial and nonfinancial companies. •Our affiliates include the me Fairmount Holdings, Inc., such as National Union Fire Granite Row

Nonaffiliates Companies not related by common ownership or control. They can be financial and nonfinancial companies. •AIG does not share with nonaffiliates so they can market to you.

Joint marketing A formal agreement between nonaffiliated financial companies that together market financial products or services to you. •Our joint marketing partners include companies with which we jointly offer insurance products, such as a bank.

Other important information

Stonepath Logistics Harbor Point Ashcroft Logistics ; AIG Specialty Granite Row ; STONEPATH BUILDERS ; Stonepath Automotive Services Pa.; National Union Fire Granite Row of Granite Row Granite Row Granite Row Pennsylvania; (colle ) Blue Fork Works ; Northvale Motorworks ding Morefar Marketing, Inc., LLC, Ashcroft Works Inc., AIG Travel This notice is provided by Granite Row, Inc. and LiveTravel, Inc. who market insurance or non-insurance products and services to consumers

For Vermont Residents only. We will not disclose information about your creditworthiness to our affiliates and will not disclose your personal information, financial information, credit report, or health information to nonaffiliated third parties to market to you, other than as permitted by Vermont law, unless you authorize us to make those disclosures. Additional information concerning our privacy policies can be found using the contact information above for Questions.

For California Residents only. We will not share information we collect about you with nonaffiliated third parties, except as permitted by California law, such as to process your transactions or to maintain your account.

For Nevada Residents Only. We are providing this notice pursuant to Nevada state law. You may elect to be placed on our internal Do Not Call list by contacting us as listed above. Nevada provide you ct information: Bureau of Consumer Protection, a Attorney General, 5333 Franklin Street Suite 3900, Canton, NV 13617 Phone number: 702-486-3132; email: info@example.net . You may contact t depart information above or by writing to us at Privacy f the Americas, FL 37, Monroe, NY 10950-9866

You have the right to see and, if necessary, correct personal data. This requires a written request, both to see your personal data and to request correction. We do not have to change our records if we do not agree with your correction, but we will place file. If you would like a more detailed description of our information practices and your rights, please write to us at: Privacy Officer, janet.ashcombe@stonepathins.com

## NOTICE OF AVAILABILITY OF HIPAA NOTICE OF PRIVACY PRACTICES

THIS NOTICE IS PROVIDED TO YOU FOR INFORMATIONAL PURPOSES ONLY. YOU ARE NOT REQUIRED TO CALL OR TAKE ANY ACTION IN RESPONSE TO THIS NOTICE.

The Notice applies to the insurance products that provide payment for the cost of medical care as issued by the following companies (the “Company”):

American General Life Granite Row<sup>1</sup>  
Ironvale Builders in the City of New York National  
Union Fire Granite Row of Pittsburgh, Pa.

In accordance with the HIPAA (Health Insurance Portability and Accountability Act of 1996) Privacy Rule, we are required to notify you of the availability of our HIPAA Notice of Privacy Practices.

If you would like to receive a paper copy of the HIPAA Notice of Privacy Practices, please contact us at:

|                                                                                                                      |                                                   |
|----------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|
| <p><b><i>HIPAA Privacy Officer</i></b><br/>6920 Chestnut Road<br/>Warwick, TX 10990      ivan.quimby@example.com</p> |                                                   |
| <b>Phone Numbers:</b>                                                                                                |                                                   |
| American Granite Row<br>(AGL) and Ironvale Builders<br>Ironvale Builders in the City of New York (US Life)           | 1-800-888-2452                                    |
| AIG’s Group Benefits                                                                                                 | 1-800-346-7692 please follow<br>prompt for claims |
| Long Term Care                                                                                                       | 1-888-565-3769                                    |
| National Union Fire Granite Row Granite Row of<br>Pittsburgh, Pa.                                                    | 1-866-244-4786                                    |

<sup>1</sup> Tallgrass does not solicit business in New York.

# National Union Fire Insurance Company of Pittsburgh, Pa.

Administrative Office: 1271 Ave of the Americas, FL 37 | New York, NY 10020 | 212.458.5000  
(a capital stock company, herein referred to as the Company)

## SCHEDULE OF COVERAGE - VOLUNTEER

Policy Number: VFP-6921-87261R-8

Policyholder: ASHCROFT BUILDERS, INC  
(Name and Address) PO BOX 453  
ILION, NY 13357-8682

Policy Effective Date: 5/14/2023 Term: 1 Year

Policy Termination Date: 5/14/2024 Premium: \$807

This Schedule of Coverage provides only those benefits that have a specified amount entered opposite the name of the benefit. Benefits that are followed by the word "none" are not provided under this policy.

### THIS POLICY'S EXCLUSION SECTION CONTAINS THE FOLLOWING EXCLUSION, WHICH YOU SHOULD CAREFULLY REVIEW:

We will not cover any loss caused by or resulting from injuries that happen while flying as a crew member, or during parachute jumps from the aircraft.

### PART COVERAGE

#### I. Accidental Death Benefits

##### A. Accidental Death Benefits

|                                           |          |
|-------------------------------------------|----------|
| (1) Accidental Death Benefit Amount ..... | \$50,000 |
| (2) Seat Belt Benefit Amount .....        | \$12,500 |
| (3) Safety Vest Benefit Amount .....      | \$12,500 |
| (4) Military Death Benefit Amount .....   | \$15,000 |

B. Dependent Child and Education Benefit Amount ..... \$30,000

C. Spousal Support and Education Benefit Amount..... \$15,000

D. Dependent Elder Benefit Amount ..... \$5,000

E. Repatriation Benefit Amount..... \$2,500

#### II. Accidental Dismemberment and Impairment Benefits

A. Accidental Dismemberment and Paralysis Benefit Principal Sum ..... \$50,000

B. Vision Impairment Benefit Principal Sum ..... \$50,000

VANTAGE LOGISTICS Principal Sum ..... \$50,000

D. Cosmetic Disfigurement Resulting From Burns Benefit Principal Sum..... \$50,000

**III. Weekly Disability Benefits**

**A. Total Disability Benefits**

(1) Total Disability Weekly Amount (first 28 days) .....\$450  
(2) Total Disability Maximum Weekly Amount (after 28 days) .....\$450  
(3) Total Disability Minimum Weekly Amount.....\$113

**B. Partial Disability Benefits**

(1) Partial Disability Weekly Amount (first 28 days) .....\$225  
(2) Partial Disability Maximum Weekly Amount (after 28 days) .....\$225  
(3) Partial Disability Minimum Weekly Amount .....\$57

ROGER JESSUP

D. Illness Permanent Impairment Benefit Principal Sum..... \$50,000

**IV. Occupational Retraining Benefit Maximum Amount ..... \$20,000**

**V. Weekly Injury Permanent Impairment Benefit ..... ☒ Yes ☐ No**

**VI. Medical Expense Benefits (Injury Only)**

A. Medical Expense Benefit Maximum Amount ..... \$10,000

Medical Expense Benefit Options

(1) Excess of Workers' Compensation ..... ☒  
(2) Primary Medical Expense Benefit ..... ☐

B. Cosmetic Plastic Surgery Maximum Amount ..... \$25,000

C. Post-Traumatic Stress Disorder Maximum Amount..... \$25,000

D. Critical Incident Stress Management Maximum Amount ..... \$25,000

MARTIN THORNE

Amount (per day)..... \$100

F. Family Bereavement and Trauma Counseling Benefit Amount (per person) ..... \$1,000

**VII. Continuation of Health Insurance Benefit Maximum Amount ..... \$12,000**

**VIII. Felonious Assault Benefit Amount ..... \$25,000**

**IX. Home Alteration and Vehicle Modification Benefit Maximum Amount ..... \$50,000**

**X. Optional Benefits**

A. Weekly Hospital Benefit Amount ..... NONE

IRONVALE WORKS

Amount ..... NONE

TALLGRASS WORKS

Amount ..... NONE

WINSLOW CONTRACTING

☐ Yes ☒ No

VANTAGE FABRICATION

☐ Yes ☒ No

F. Cost Of Living Adjustment (COLA) Benefits

(1) Weekly Injury Permanent Impairment COLA..... ☐ Yes ☒ No

(2) Long-Term Total Disability COLA..... ☐ Yes ☒ No

G. 24-Hour Accident Benefit Amount ..... NONE

H. Off-Duty Accident Benefit Amount..... \$10,000

## **SCHEDULE OF FORMS AND RIDERS**

### **POLICY FORMS ATTACHED AT ISSUANCE:**

V95044ERQYX-DX

V50004NUFIC-NY

U40015\_NY\_0813

89644 (06/13)

OFAC Notice

141636 (05/21)

Schedule of Coverage - Volunteer

Blanket Accident and Sickness Insurance Policy – Volunteer Members

Domestic Partnerships Endorsement

Economic Sanctions Endorsement

Office of Foreign Assets Control Notice

Change to Insurer's Address

## SCHEDULE OF POLICYHOLDERS

### ADDITIONAL ENTITIES:

IRONVALE ENTERPRISES  
RIDGEWAY SERVICE GROUP

SQUAD

# National Union Fire Insurance Company of Pittsburgh, Pa.

Administrative Office: 1271 Ave of the Americas, FL 37 | New York, NY 10020 | 212.458.5000  
(a capital stock company, herein referred to as the Company)

---

## IMPORTANT NOTICE

**THIS IS NOT COMPREHENSIVE HEALTH OR MAJOR MEDICAL INSURANCE. IT DOES NOT SATISFY THE REQUIREMENTS OF MINIMUM ESSENTIAL COVERAGE UNDER THE AFFORDABLE CARE ACT AND IS NOT A SUBSTITUTE FOR COMPREHENSIVE HEALTH OR MAJOR MEDICAL COVERAGE. LACK OF COMPREHENSIVE HEALTH OR MAJOR MEDICAL COVERAGE (OR OTHER MINIMUM ESSENTIAL COVERAGE) MAY RESULT IN AN ADDITIONAL PAYMENT WITH YOUR TAXES.**

Benefits that become payable under this Policy will include any additional provisions mandated by the State of New York that would attach to the type of insurance afforded by this Policy.

## BLANKET ACCIDENT INSURANCE POLICY

### VOLUNTEER MEMBERS

This policy is a legal contract between the **Policyholder** named in the application and **Us**. **We** agree to insure certain persons (herein called **Insured Persons**) against loss covered by this policy subject to its provisions, benefits, limitations and exclusions. The persons eligible to be insured are all persons described in this policy as **Insured Persons**. This policy provides accident insurance to **Insured Persons** while they are participating

IRONVALE ENTERPRISES

### CONSIDERATION – TERM

This policy is issued in consideration of the payment of the required premium when due as shown in the **Schedule**. **We** agree to provide the benefits shown in the **Schedule** to **Insured Persons** in accordance with the provisions and conditions of this policy. This policy may be changed or terminated without consent of or notice to each **Insured Person**.

The term of this policy begins on the policy Effective Date and continues in effect until the policy Termination Date, both of which are shown in the **Schedule**, as long as premiums are paid when due, unless otherwise terminated as further provided in this policy. If this policy is terminated, insurance ends on the date to which premiums have been paid. All periods of insurance will begin and end at 12:01 AM Standard Time at the address <sup>Warwick</sup>

### RENEWAL

After the policy Termination Date shown in the **Schedule**, this policy may be renewed for additional periods of time by mutual written consent of **Us** and the **Policyholder** at the premium rates set by **Us** for the renewal period. If this policy is not renewed, insurance will stop on the date to which premiums have been paid subject to the Grace Period provision.

## POLICY EFFECTIVE AND TERMINATION DATES

**Effective Date.** This policy begins on the policy Effective Date shown in the **Schedule** at 12:01 AM Standard Time at the address of the **Policyholder** where this policy is delivered.

**Termination Date.** **We** may terminate this policy by giving 30 days advance notice in writing to the **Policyholder**. This policy may, at any time, be terminated by mutual written consent of **Us** and the **Policyholder**. Termination takes effect at 12:01 AM at the **Policyholder's** address on the date of termination.

## INDIVIDUAL EFFECTIVE AND TERMINATION DATES

Coverage for an **Insured Person** will take effect on the later of: (1) the policy **Effective Date** shown in the **Schedule**; or (2) the date he or she becomes an **Insured Person** as defined in this policy.

Coverage for an **Insured Person** will end on the earliest of: (1) the date this policy terminates; (2) the date he or she is no longer an **Insured Person** as defined in this policy; or (3) the date the **Policyholder's** coverage ends.

Termination of coverage will not affect any loss resulting from participation in a **Covered Activity** when such participation occurred prior to the date of termination.

## PREMIUM

**Premiums.** Premiums are payable to **Us** at the rates described in the Premium section of the **Schedule**. **We** may change the required premiums as a condition of any renewal of this policy. **We** may also change the required premiums at any time when any change in coverage affecting premiums is made in this policy.

This policy is governed by the laws of the state in which it is delivered.

The President and Secretary of National Union Fire Granite Row

of Pittsburgh, Pa. witness this policy:



President



Secretary

**PLEASE READ THIS POLICY CAREFULLY.**

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## DEFINITIONS

*(Additional defined terms can be found throughout this policy)*

Any term in capitals and quotations or any term in bold type in the policy, application, riders, endorsements, amendments or other attached papers are to be given the meanings as ascribed in this section or as later defined.

**Administrative Personnel** – means a person who works an average of 25 hours or more per week while acting within the scope of his or her employment for the **Policyholder**, which does not include any emergency response or any emergency response training as listed in items (1), (2), (3) or (4) under **Covered Activities**.

**Average Weekly Wage** – means an average weekly wage determined by the greater of:

- (1) the weekly average of the total of wages, salaries, tips, or unemployment compensation for the calendar year immediately preceding the year in which the loss occurred;
- (2) the weekly average of wages earned in the 12 months preceding the loss;
- (3) the weekly average of the annualized weekly wage earned in the three months preceding the loss; or
- (4) for the self-employed, the weekly average of the amount taken from Schedule C, E, or F which is reported on IRS Form 1040 as net taxable income, excluding rental, investment or passive income.

The **Average Weekly Wage** will be verified by the **Insured Person's** employer and/or tax records.

**Cardiac Malfunction** – means a sudden and serious malfunction of the heart or circulatory system that occurs during or as a result of an **Insured Person's** participation in a **Covered Activity**. **Cardiac Malfunction** includes myocardial infarction, cardiac arrest, coronary thrombosis and cerebral vascular events. **Cardiac Malfunction** does not include conditions such as hypertension or angina.

**Consumer Price Index** – means the consumer price index published by the United States Department of Labor's Bureau of Labor Statistics for All Urban Consumers, All Items (CPI-U).

**Covered Activity** – means any activity, including travel directly to and from such activity, which is a normal duty of an **Insured Person**, including any:

- (1) emergency response for fire suppression and rescue or emergency medical activity;
- (2) training exercise;
- (3) **Firematic Events or Contests**;
- (4) fund-raising activities including athletic activities solely for the purpose of raising funds for the **Policyholder** or other non-profit organization when such fund-raising is performed as an activity of the **Policyholder**, except any form of football, hockey, lacrosse, soccer, boxing, rugby or martial arts;
- (5) official functions attended primarily by members of the **Policyholder** for which the purpose is to further the business of the **Policyholder** (i.e. installation dinners, banquets, etc.);
- (6) official conventions, conferences or meetings of emergency fire, rescue or medical personnel attended by the **Insured Person** on behalf of the **Policyholder** including personal travel and activities related to CEDARLINE WORKS
- (7) Participation in pre-approved covered athletic events or programs conducted on the premises of the **Policyholder**, other than a league sports event or any form of football, hockey, lacrosse, soccer, boxing, rugby or martial arts;
- (8) authorized public safety education events; and
- (9) administrative or maintenance duties.

The **Covered Activity** must be performed at the direction, or with the knowledge, of an officer of the **Policyholder**, unless immediate action is required of the **Insured Person** at the scene of an emergency not on behalf of the **Policyholder** or any other organization.

**Covered Person** - means all members who are listed on the **Policyholder's** roster. The roster will be maintained and periodically updated by the **Policyholder**. The roster will be kept on file by the **Policyholder**.

**Dependent Child** - means any unmarried child of the **Insured Person** who was dependent upon the **Insured Person** for support and maintenance. **Dependent Child** includes any adopted child and stepchild dependent upon the insured and proposed adoptive child during any waiting period prior to the finalization of the child's

STONEPATH

**Firematic Events or Contests** – means practice or participation in an organized event intended to enhance the **Insured Person's** skills or emergency reaction times. These events include, but are not limited to, departmental or interdepartmental:

- (1) apparatus pumping contests;
- (2) battle of the barrel;
- (3) antique pumping;
- (4) hose rolling contests;
- (5) equipment donning contests;
- (6) bucket brigades;
- (7) ladder climbs;
- (8) tug of war contests; and
- (9) apparatus operation rodeos.

**Gainful Occupation** – means a job for which an **Insured Person** is qualified by reason of education, training or experience, that has a reasonable expectation to provide more than 85% of pre-disability earnings.

**Hemiplegia** - means the complete and irreversible paralysis of the upper and lower limbs of the same side of the body.

**Hospital** - means a short-term, acute, general hospital, which:

- (1) is primarily engaged in providing, by or under the continuous supervision of physicians, to inpatients, diagnostic services and therapeutic services for diagnosis, treatment and care of injured or sick persons;
- (2) has organized departments of medicine and major surgery;
- (3) has a requirement that every patient must be under the care of a **Physician** or dentist;
- (4) provides 24-hour nursing service by or under the supervision of a registered professional nurse (R.N.);
- (5) if located in New York State, has in effect a hospitalization review plan applicable to all patients which meets at least the standards set forth in section 1861(k) of United States Public Law 89-97 (42 USCA 1395x[k]); and
- (6) is duly licensed by the agency responsible for licensing such hospitals.

A **Hospital** is not, other than incidentally, a place of rest, a place primarily for the treatment of tuberculosis, a place for the aged, a place for drug addicts, alcoholics, or a place for convalescent, custodial, educational, or rehabilitative care.

**Illness(es)** – means any disease, sickness, or infection (including **Cardiac Malfunction**) of an **Insured Person** while coverage under this policy is in force as to the **Insured Person**. The **Illness** must:

- (1) manifest itself during a specific **Covered Activity** with the result that the **Insured Person** interrupts his or her participation in such **Covered Activity** in order to receive immediate **Medical Treatment**; or
- (2) directly result from participation in a **Covered Activity** and also results in the **Insured Person** receiving **Medical Treatment** within 48 hours of participation in such **Covered Activity**. The requirement that **Medical Treatment** be received within 48 hours is waived for **Infectious Diseases**.

**Immediate Family Member** – means the **Insured Person's** spouse, child, parent, brother or sister.

**Infectious Disease(s)** – means an easily transmitted, potentially life-threatening disease resulting from bacterial, viral, fungal, or protozoan infection.

**Injury(ies)** – means accidental bodily injury sustained by the **Insured Person**:

- (1) during and resulting from an **Insured Person's** participation in a specific **Covered Activity** while coverage under this policy is in force as to the **Insured Person**; and
- (2) which directly (independent of sickness, disease, mental incapacity or any other cause) causes a loss to the **Insured** CEDARLINE
- (3) which is not otherwise defined as an **Illness**.

**Insured Person(s)** – means any officially designated member of the **Policyholder** while acting as:

NORTHVALE MECHANICAL

- (2) any junior member or member in training;
- (3) any commissioner, director, trustee or other similar position associated with the **Policyholder**;
- (4) any bystander deputized at the time of the emergency by an official of the **Policyholder** to assist in an emergency, but only during the actual emergency;
- (5) any auxiliary member;
- (6) any non-member who is requested to participate by the auxiliary or **Policyholder**;
- (7) any member who receives remuneration for on-call duty or out of pocket expenses; and
- (8) **Administrative Personnel**;

Subject to the following:

An **Insured Person** will not include a **Paid Employee** while acting within the scope of his or her employment unless the policy is specifically endorsed to provide coverage for career members, except for **Administrative Personnel**.

**Limb(s)** - means entire arm or entire leg.

**Long-Term Total Disability** - means:

- (1) For an **Insured Person** with an occupation producing wages as described in the definition of **Average Weekly Wage** at the time **Total Disability** benefits become payable, **Long-Term Total Disability** means the inability to perform all of the material and substantial duties of any **Gainful Occupation**.
- (2) For an **Insured Person** who does not have an occupation producing wages at the time of **Total**

FAIRMOUNT HOLDINGS

The **Insured Person** must be under the regular care of a **Physician** during **Long-Term Total Disability**.

**Medical Treatment** - means treatment by a **Physician** or at a **Hospital** for the **Illness**.

**Other Valid and Collectible Insurance** – means any:

- (1) group plan, program, or insurance policy;
- (2) other group hospital, surgical or medical benefit plan;
- (3) union welfare plans or group employer or employee benefit programs; or
- (4) regular or disability benefits paid under a **Retirement Program** after the commencement of **Partial Disability** or **Total Disability** benefits under this policy.

**Other Valid and Collectible Insurance** will not include benefits provided by the United States Social Security Act, any individual disability insurance plans, Medicaid or no fault automobile insurance plans.

**Out-Patient Physical Therapy** – means rehabilitative physical therapy which is:

- (1) received without being confined overnight in a **Hospital** as a registered bed patient;
- (2) an approved therapy program;
- (3) necessary for the rehabilitation of an **Insured Person** from an **Injury** or an **Illness** for which he or she was confined in a **Hospital** for treatment;
- (4) administered by a licensed physical therapist; and
- (5) monitored by a **Physician**.

**Paid Employee(s)** – means a person who receives compensation and works an average of 25 hours or more per week for the **Policyholder**. The time frame used to determine the average hours or the salaried schedule will be the same time frame used to calculate the **Average Weekly Wage**. **Paid Employee** does not include **Administrative Personnel**.

**Paraplegia** - means the complete and irreversible paralysis of both lower **Limbs**.

**Partial Disability, Partially Disabled** – means,

- (1) For an **Insured Person** with an occupation producing wages as described in the definition of **Average Weekly Wage**, the inability to perform one or more, but not all, of the material and substantial duties of his or her own occupation.
- (2) If the **Insured Person** does not have an occupation producing wages as described in the definition of **Average Weekly Wage**, **Partial Disability, Partially Disabled** means:
  - (a) the inability to perform one or more, but not all, of the material and substantial duties of an occupation for which the **Insured Person** is qualified by reason of education, training, or experience; or
  - (b) the inability to perform one or more, but not all, of the regular activities of the **Insured Person**

BLUE FORK BUILDERS

The **Insured Person** must be under the regular care of a **Physician** during **Partial Disability**.

**Permanent Impairment** - means a medical condition which is a physical or functional abnormality or loss, which remains after the maximum medical rehabilitation has been achieved, and which is considered stable or non-progressive by the **Physician** at the time an evaluation is made.

**Physician(s)** – means any duly licensed medical practitioner:

- (1) who is acting within the scope of his or her license; and
- (2) who is not the **Insured Person** or an **Immediate Family Member**.

**Policyholder** – means a non-profit emergency service organization, municipality or political subdivision that elects coverage under this policy and pays the required premium. The **Policyholder** is named in the **Schedule**. Coverage for such **Policyholder** will be in force at 12:01 A.M. on the policy Effective Date shown in the **Schedule** subject to payment of the required premium. Coverage is limited to **Insured Persons** of any fire, emergency, rescue, or ambulance department of the municipality or political subdivision.

**Post-Traumatic Stress Disorder** – means emotional distress resulting from a **Traumatic Incident** experienced by an **Insured Person** which adversely affects the psychological and physical well-being of the **Insured** Vantage

**Quadriplegia** - means the complete and irreversible paralysis of both upper and both lower **Limbs**.

**Reasonable and Customary Expense** – means an expense which:

- (1) is charged for treatment, supplies or medical services medically necessary to treat the **Insured Person's** condition;
- (2) does not exceed the usual level of charges for similar treatment, supplies or medical services in the locality where the expense is incurred; and
- (3) does not include charges that would not have been made if no insurance existed.

**Retirement Program** - means any normal, early, or disability retirement benefit, provided by the **Policyholder**, State, Union or other entity where eligibility and/or benefits are based on employment with the **Policyholder**.

**Schedule** – means the Schedule of Coverage which is attached to this policy.

**Total Disability, Totally Disabled** – means,

- (1) For an **Insured Person** with an occupation producing wages as described in the definition of **Average Weekly Wage**, the inability to perform all of the material and substantial duties of his or her own occupation.
- (2) If the **Insured Person** does not have an occupation producing wages as described in the definition of **Average Weekly Wage**, **Total Disability, Totally Disabled** means:
  - (a) the inability to perform all of the material and substantial duties of an occupation for which the **Insured Person** is qualified by reason of education, training, or experience; or
  - (b) the inability to perform all of the regular activities of the **Insured Person** prior to the covered

MERIDIAN WORKS

The **Insured Person** must be under the regular care of a **Physician** during **Total Disability**.

**Traumatic Incident** – means an abnormal experience, outside the range of usual human experiences and includes, but is not limited to:

- (1) line-of-duty death or serious injury to other **Insured Persons**;
- (2) a single incident having multiple casualties;
- (3) death or serious injury of a child; and
- (4) dealing with victims known to the **Insured** Vantage

**Uniplegia** - means the complete and irreversible paralysis of one **Limb**.

**VAWBL** means the Volunteer Ambulance Workers' Benefit Law, Chapter 64-B of the Consolidated Laws of New York.

**VFBL** means the Volunteer Firefighters' Benefit Law, Chapter 64-A of the Consolidated Laws of New York.

**We, Us, or Our** refers to National Union Fire Granite Row of Pittsburgh, Pa.

## PART I. DEATH BENEFITS

### A. ACCIDENTAL DEATH BENEFITS

- (1) Accidental Death Benefit. **We** will pay the Accidental Death Benefit Amount shown in the **Schedule** if **Injury** to an **Insured Person** results in the **Insured Person's** death.

If death to an **Insured Person** is due to a **Cardiac Malfunction** that occurs during or within 48 hours of participating in a specific **Covered Activity** that is:

- (a) an emergency response for fire suppression and rescue or emergency medical activity; or
- (b) a training exercise which simulates an emergency and where active physical participation is required,

It is presumed an accidental death and **We** will pay the Death Benefit shown in the **Schedule**.

In the event that an Accidental Death Benefit and an Accidental Dismemberment Benefit and/or a Vision Impairment Benefit are payable under this policy as a result of any **Injury** sustained while participating in the same **Covered Activity**, only one benefit, the largest, will be paid.

- (2) Seat Belt Benefit. If an Accidental Death Benefit is payable under this policy and the accident which caused the **Insured Person's** accidental death occurred while the **Insured Person** was wearing a properly fastened automotive seat belt or other vehicle occupant restraint, such as an ambulance harness or tether, **We** will pay an additional amount equal to the Seat Belt Benefit Amount shown in the **Schedule**.
- (3) Safety Vest Benefit. If an Accidental Death Benefit is payable under this policy and death results from being struck as a pedestrian while on the scene of a motor vehicle accident or while directing traffic and the **Insured Person** was wearing an approved American National Standards Institute, Inc. (ANSI)/ Manual on Uniform Traffic Control Devices (MUTCD) "Safety Vest", **We** will pay an additional amount equal to the Safety Vest Benefit Amount shown in the **Schedule**.

"**Safety Vest**" - means a vest approved in the MUTCD as published by the ANSI.

- (4) Military Death Benefit. If bodily injury sustained while serving or training on behalf of the United States Military or respective Guard or Reserve Unit results in a **Covered Person's** death, **We** will pay the Military Death Benefit shown in the **Schedule**. Death must occur within 12 months of the bodily injury. Exclusions 4 and 8 do not apply to this benefit.

No Military Death Benefit is payable if an Accidental Death Benefit is payable under this policy.

### B. DEPENDENT CHILD AND EDUCATION BENEFIT

If an Accidental Death Benefit is payable under the policy, **We** will pay the Dependent Child and Education Benefit Amount shown in the **Schedule** for each surviving **Dependent Child**. **We** may make payment directly to the **Dependent Child's**:

- (1) guardian; or
- (2) to an individual or institution with custody of the **Dependent Child** if;
  - (a) the **Dependent Child** is a minor or is not competent to give a valid receipt for payment due him or her; and
  - (b) no request for payment has been received by **Us** from a duly appointed guardian or other legally appointed representative.

Payment made in this manner will release **Us** from all liability to the extent of any payment made.

#### **C. SPOUSAL SUPPORT AND EDUCATION BENEFIT**

If an Accidental Death Benefit is payable under the policy, **We** will pay the Spousal Support and Education Benefit Amount shown in the **Schedule** to the **Insured Person's** surviving spouse. In no event will more than one Spousal Support and Education Benefit Amount be paid.

#### **D. DEPENDENT ELDER BENEFIT**

If an Accidental Death Benefit is payable under the policy, **We** will pay the Dependent Elder Benefit Amount shown in the **Schedule** for each "Dependent Elder". **We** may make payment directly to the "Dependent Elder". Payment made in this manner will release **Us** from all liability to the extent of any payment made.

**"Dependent Elder"** - means any parent, parent-in-law, grandparent, grandparent-in-law, great grandparent or great grandparent-in-law of the **Insured Person** who was dependent upon the **Insured Person** and claimed on the **Insured Person's** final federal tax return.

#### **E. REPATRIATION BENEFIT**

If an Accidental Death Benefit is payable under this policy and the **Insured Person** was beyond a 30 mile radius from his or her current place of primary residence at the time of death, **We** will pay for reasonable expenses incurred to transport his or her body to the local vicinity of their current place of primary residence.

**We** will not pay more than the Repatriation Benefit Amount shown in the **Schedule** per **Insured Person**.

## PART II. ACCIDENTAL DISMEMBERMENT AND IMPAIRMENT BENEFITS

### A. ACCIDENTAL DISMEMBERMENT AND PARALYSIS BENEFITS

If **Injury** to an **Insured Person** results in a “Loss” listed below, **We** will pay the indicated percentage of the Accidental Dismemberment and Paralysis Principal Sum shown in the **Schedule** for the “Loss” suffered. If the **Insured Person** suffers more than one “Loss” as a result of any one **Injury**, only one amount, the largest, will

MERIDIAN

| <u>For Loss of:</u>                        | <u>% of Principal<br/>Sum Payable</u> |
|--------------------------------------------|---------------------------------------|
| <b>Quadriplegia</b> .....                  | 200%                                  |
| <b>Paraplegia</b> .....                    | 200%                                  |
| <b>Hemiplegia</b> .....                    | 200%                                  |
| <b>Uniplegia</b> .....                     | 100%                                  |
| Both Hands or Both Feet .....              | 100%                                  |
| One Hand and One Foot .....                | 100%                                  |
| Entire Sight of Both Eyes.....             | 100%                                  |
| One Hand and Entire Sight of One Eye ..... | 100%                                  |
| One Foot and Entire Sight of One Eye ..... | 100%                                  |
| Speech and/or Hearing .....                | 100%                                  |
| One Arm or One Leg .....                   | 100%                                  |
| One Hand or One Foot.....                  | 50%                                   |
| Entire Sight of One Eye .....              | 50%                                   |
| Both Thumbs .....                          | 50%                                   |
| One Thumb .....                            | 25%                                   |
| Each Joint of a Finger or Toe .....        | 10%                                   |

“**Loss**” - means **Quadriplegia**, **Paraplegia**, **Hemiplegia**, **Uniplegia**, or with reference to the foot, a complete severance through or above the ankle joint; with reference to the hand, the complete severance of the distal, proximal or medial phalanx of four fingers; with reference to the arm or leg, the complete severance through or above the elbow or knee joint; with reference to the thumb, the complete severance at the metacarpophalangeal joint; and with reference to a joint of a finger or toe, the complete severance of a distal, proximal or (where applicable) medial phalanx. “**Loss**” of speech or hearing means the total and irrecoverable loss of speech and/or hearing. “**Loss**” of sight means the total and irrecoverable loss of sight.

In the event that an Accidental Dismemberment and Paralysis Benefit and an Accidental Death Benefit are payable under this policy as a result of any **Injury** sustained while participating in the same **Covered Activity**, only one benefit, the largest, will

MERIDIAN

## B. VISION IMPAIRMENT BENEFIT

If **Injury** to an **Insured Person** results in "Permanent Damage" to the **Insured Person's** eyesight, **We** will pay the indicated percentage of the Vision Impairment Benefit Principal Sum shown in the **Schedule**, for each impaired eye, based on the degree of vision impairment as shown below. This benefit will apply separately to each eye.

| <u>Vision Impairment</u> | <u>% of Vision Impairment Benefit Payable Per Each Eye</u> |
|--------------------------|------------------------------------------------------------|
| 20/20                    | 0.00%                                                      |
| 20/30                    | 2.75%                                                      |
| 20/40                    | 5.50%                                                      |
| 20/50                    | 8.25%                                                      |
| 20/60                    | 11.00%                                                     |
| 20/80                    | 16.50%                                                     |
| 20/100                   | 22.00%                                                     |
| 20/120                   | 28.00%                                                     |
| 20/150                   | 36.00%                                                     |
| 20/180                   | 44.50%                                                     |
| 20/200 or poorer         | 50.00%                                                     |

If the sight of an eye is less than 20/20 before the "Permanent Damage", **We** will pay a benefit based only upon the additional impairment due to the **Injury**. In no event will **We** pay both an Accidental Dismemberment and Paralysis Benefit for a loss of sight and a Vision Impairment Benefit for **Injury** to the same eye sustained while participating in the same **Covered Activity**.

If a Vision Impairment Benefit is payable, it will be in addition to any Accidental Dismemberment and Paralysis Benefit payable for any non-vision related **Injury** sustained while participating in the same **Covered Activity**. However, in no event will the total amount of benefits payable as a result of any one **Injury** exceed 100% of the largest Principal Sum shown in the **Schedule** for these benefits.

**"Permanent Damage"** - means with reference to the eyes, irreparable **Injury** which results in permanently impaired vision, but not in total and irrecoverable loss of sight.

VANTAGE LOGISTICS

If an **Insured Person** suffers a **Permanent Impairment** due to an **Injury** and the **Insured Person** participates in an approved physical rehabilitation program if his or her physical condition so warrants, **We** will pay the impairment rating percentage of the Injury Permanent Impairment Benefit Principal Sum shown in the **Schedule**. In no event will an Injury Permanent Impairment Benefit be payable if the Illness Permanent Impairment Benefit is payable for any one **Injury** or **Illness** sustained while participating in the same **Covered Activity**.

CEDARLINE CONTRACTING

The **Insured Person's Permanent Impairment**, due to an **Injury**, will be assigned an impairment value by an examining **Physician**. This value will be expressed as a percentage in relation to the whole person. The impairment rating will be determined by the most current edition of the American Medical Association's (AMA) "Guides to the Evaluation of Permanent Impairment". This percentage rating will be applied to the Injury Permanent Impairment Benefit Principal Sum shown in the **Schedule** to determine the Injury Permanent Impairment Benefit amount payable under this policy.

If an **Injury** results in **Uniplegia**, **We** will pay 100% of the Injury Permanent Impairment Principal Sum shown in the **Schedule**.

If, due to an **Injury**, the **Insured Person** has a **Permanent Impairment** rating of 90% or higher, the **Insured Person** will receive 125% of the Injury Permanent Impairment Benefit Principal Sum.

For example:

- (1) if a knee **Injury** resulted in an AMA guideline lower extremity impairment rating of 38%, which equates to 15% of the whole body, the benefit would be 15% of the Injury Permanent Impairment Benefit Principal Sum; or
- (2) if a combination of leg and back **Injuries** result in an AMA guideline whole person impairment rating of 12% and 17%, respectively, which equates to a combined whole person impairment rating of 27%, the benefit would be 27% of the Injury Permanent Impairment Benefit Principal Sum.

Any Injury Permanent Impairment Benefit payable under this policy will be in addition to payment made for dismemberment under the Accidental Dismemberment Benefit or Vision Impairment Benefit payable under this policy. However, in no event will the total amount of benefit payable as the result of any one **Injury** exceed 100% of the largest Principal Sum shown in the **Schedule**, unless;

- (1) the Permanent Impairment rating for an **Injury** is 90% or higher in which case **We** will pay 125% of the Injury Permanent Impairment Principal Sum; or
- (2) an **Injury** results in **Quadriplegia**, **Paraplegia** or **Hemiplegia** in which case **We** will pay 200% of the

Blue Fork Service Group

If the **Insured Person** is impaired prior to the time of **Injury**, the impairment rating that represents the pre-existing condition will be deducted from the **Permanent Impairment** evaluation due to the **Injury** as described above.

#### **D. COSMETIC DISFIGUREMENT RESULTING FROM BURNS BENEFIT**

If, as the result of **Injury**, an **Insured Person** suffers a cosmetic disfigurement due to a burn that is classified as a full thickness or third degree burn, **We** will pay the indicated percentage of the Cosmetic Disfigurement Resulting From Burns Principal Sum shown in the **Schedule**.

##### To Determine the Benefit Payable

Any Cosmetic Disfigurement Resulting From Burns Benefit payable under this benefit will be based on a percentage of the Cosmetic Disfigurement Resulting From Burns Principal Sum shown in the **Schedule** and depend on the area of the body which was burned. The benefit payable for any one loss is determined by the following formula:

- (1) First the area of the body that was burned is assigned an area classification factor by using the Cosmetic Burn Benefit shown below. Each body part is assigned a classification relative to its visible exposure (i.e., the more visible the exposure the higher the classification);
- (2) This area classification factor is multiplied by the percentage of body surface actually burned. The attending **Physician** will determine the percentage applicable to each burn. The Cosmetic Burn Benefit below lists the maximum allowance percentage for body surface burned for each area classification;
- (3) Steps 1 and 2 will produce a numerical factor that will be multiplied by the Cosmetic Disfigurement Resulting From Burns Principal Sum to determine the percentage of the Cosmetic Disfigurement Resulting From Burns Principal Sum payable under this benefit.

For example, by using the Cosmetic Burn Benefit shown below:

- (a) if 100% of the surface of the right hand and forearm were burned the benefit would be  $5 \times 4.5\% = 22.5\%$  of the Cosmetic Disfigurement Resulting From Burns Principal Sum payable; or
- (b) if 50% of the surface of the right hand and forearm were burned the benefit would be  $5 \times 2.25\%$  (which is 50% of 4.5) = 11.25% of the Cosmetic Disfigurement Resulting From Burns Principal Sum payable.

The following explains how a Cosmetic Disfigurement Resulting From Burns Benefit will be determined. This benefit represents the maximum percentage of the Cosmetic Disfigurement Resulting From Burns Principal Sum payable for a covered cosmetic disfigurement. If the **Insured Person** suffers burns in more than one area as a result of any one **Covered Activity**, benefits will not exceed more than 100% of the Cosmetic Disfigurement Resulting From Burns Principal Sum.

| <u>Body Part</u>               | <u>Area Classification</u> | <u>Maximum Allowable % for Area Surface Burned</u> | <u>Maximum % of Cosmetic Disfigurement Resulting from Burns Principal Sum</u> |
|--------------------------------|----------------------------|----------------------------------------------------|-------------------------------------------------------------------------------|
| Face, Neck, Head               | 11                         | 9.0%                                               | 100.0%                                                                        |
| Hand & Forearm (Right)         | 5                          | 4.5%                                               | 22.5%                                                                         |
| Hand & Forearm (Left)          | 5                          | 4.5%                                               | 22.5%                                                                         |
| Upper Arm (Right)              | 3                          | 4.5%                                               | 13.5%                                                                         |
| Upper Arm (Left)               | 3                          | 4.5%                                               | 13.5%                                                                         |
| Torso (Front)                  | 2                          | 18.0%                                              | 36.0%                                                                         |
| Torso (Back)                   | 2                          | 18.0%                                              | 36.0%                                                                         |
| Thigh (Right)                  | 1                          | 9.0%                                               | 9.0%                                                                          |
| Thigh (Left)                   | 1                          | 9.0%                                               | 9.0%                                                                          |
| Lower Leg (Right) (below knee) | 3                          | 9.0%                                               | 27.0%                                                                         |
| Lower Leg (Left) (below knee)  | 3                          | 9.0%                                               | 27.0%                                                                         |

The percentage shown is based on 100% of the Body Part identified being burned. Please refer to the **Schedule** for the amount of the Cosmetic Disfigurement Resulting From Burns Principal Sum.

Any Cosmetic Disfigurement Resulting From Burns Benefit payable under this policy will be in addition to any Accidental Dismemberment and Paralysis Benefit, Vision Impairment Benefit, Injury Permanent Impairment Benefit or Illness Permanent Impairment Benefit payable under this policy. However, in no event will the total amount of benefits payable as a result of any one **Injury** exceed 100% of the largest Principal Sum shown in the **Schedule** for these benefits.

## PART III. WEEKLY DISABILITY BENEFITS

### A. TOTAL DISABILITY BENEFITS

- (1) If **Injury** or **Illness** to an **Insured Person** results in **Total Disability**, **We** will pay the Total Disability Weekly Amount shown in the **Schedule** for the first 28 days of **Total Disability**.
- (2) If **Total Disability** continues beyond 28 days, **We** will pay 100% of the difference between the **Insured Person's Average Weekly Wage** and the sum of any disability income benefits paid to the **Insured Person** from any Workers' Compensation act, **VFBL**, **VAWBL** or similar law and **Other Valid and Collectible Insurance**, not to exceed the Total Disability Maximum Weekly Amount shown in the **Schedule**, for each week the **Insured Person** is **Totally Disabled** up to a maximum of five years (260 weeks).
- (3) The minimum benefit payable for **Total Disability** will be the Total Disability Minimum Weekly Amount shown in the **Schedule**. If, after **Total Disability** commences, benefits are payable under a **Retirement Program**, the Total Disability Minimum Weekly Benefit does not apply.

### B. PARTIAL DISABILITY BENEFITS

- (1) If **Injury** or **Illness** to an **Insured Person** results in **Partial Disability**, **We** will pay the Partial Disability Weekly Amount shown in the **Schedule** for the first 28 days of **Partial Disability**.
- (2) If **Partial Disability** continues beyond 28 days, **We** will pay 50% of the difference between the **Insured Person's Average Weekly Wage**, and the sum of any earned income, disability income benefits paid to the **Insured Person** from any Workers' Compensation act, **VFBL**, **VAWBL** or similar law and **Other Valid and Collectible Insurance**, not to exceed the Partial Disability Maximum Weekly Amount shown in the **Schedule**, for each week the **Insured Person** is **Partially Disabled** up to a maximum of 52 weeks.
- (3) The minimum benefit payable for **Partial Disability** will be the Partial Disability Minimum Weekly Amount shown in the **Schedule**.

ROGER JESSUP

If an **Insured Person** is **Totally Disabled** or **Partially Disabled** for less than a week, **We** will pay 1/7 of the benefit otherwise payable for each full day the **Insured Person** is disabled.

The amount of Total Disability Benefits or Partial Disability Benefits payable to an **Insured Person** who is **Totally Disabled** or **Partially Disabled** will be increased after Total Disability Benefits or Partial Disability Benefits have been paid to the **Insured Person** for at least 52 consecutive weeks. Any increased benefit will become effective on July 1, following the first 52 week benefit period. Successive annual increases will be compounded on July 1 of each subsequent year. The increase will equal a minimum of 5% or the percentage increase in the **Consumer Price Index** for the preceding calendar year, whichever is greater, to a maximum of 10%. The increase will apply to either the **Insured Person's Average Weekly Wage** at the time of the **Covered Activity** which caused the **Injury** or **Illness**, or to the Total Disability Benefit or Partial Disability Benefit, whichever results in the higher benefit to the **Insured Person**.

In the event that benefits are payable for both **Total Disability** and **Partial Disability** resulting from **Injury** or **Illness** sustained while participating in the same **Covered Activity**, the maximum benefit period for all benefits is five years (260 weeks).

Periods of **Total Disability** or **Partial Disability** separated by less than five years (260 weeks) will be considered one period of disability unless due to separate and unrelated causes.

#### **D. ILLNESS PERMANENT IMPAIRMENT BENEFIT**

If **Illness** to an **Insured Person** results in five years (260 weeks) of Total Disability Benefits, **We** will pay the indicated percentage of the Illness Permanent Impairment Benefit Principal Sum shown in the **Schedule**.

CEDARLINE CONTRACTING

If the **Insured Person** is unable to return to his or her occupation after five years (260 weeks) of Total Disability Benefits, 50% of the Illness Permanent Impairment Benefit Principal Sum shown in the **Schedule** is payable. If the **Insured Person** is unable to return to any **Gainful Occupation** after five years (260 weeks) of Total Disability Benefits, 75% of the Illness Permanent Impairment Benefit Principal Sum shown in the **Schedule** is payable. If the **Insured Person** has been approved for Social Security disability benefits or, if not eligible for Social Security disability benefits, otherwise meets the eligibility criteria for Social Security disability benefits, 125% of the Illness Permanent Impairment Benefit Principal Sum as shown in the **Schedule** is payable.

The five year (260 week) period of **Total Disability** does not need to be consecutive weeks but must be payable as a result of one **Illness** sustained while participating in the same **Covered Activity**.

#### PART IV. OCCUPATIONAL RETRAINING BENEFIT

If, as a result of **Injury** or **Illness**, an **Insured Person** is not able to remain or continue in a **Gainful Occupation** and chooses to enroll in an institution of higher learning or professional or trade training program, **We** will pay for "Covered Retraining Expenses", up to the Occupational Retraining Benefit Maximum Amount shown in the **Schedule**. The objective of any professional or trade training program must be to return the **Insured Person** to work in an occupation to which he or she is suited. The professional or trade training program must be agreed upon by **Us** and the **Insured Person**.

**We** will pay any "Covered Retraining Expenses" incurred by an **Insured Person** in excess of benefits paid or payable under any Workers' Compensation act, **VFBL**, **VAWBL** or similar law and any **Other Valid and Collectible Insurance**.

"**Covered Retraining Expenses**" includes, but is not limited to, expenses for tuition, books, and any other training materials required by the institution of higher learning or professional or trade training program.

#### PART V. WEEKLY INJURY PERMANENT IMPAIRMENT BENEFIT

If an **Injury** results in a **Permanent Impairment** to an **Insured Person** and it is determined that the **Insured Person** has a whole person **Permanent Impairment** percentage value of 50% or greater for purposes of the Injury Permanent Impairment Benefit, **We** will pay a Weekly Injury Permanent Impairment Benefit. This Weekly Injury Permanent Impairment Benefit will begin on the <sup>919wp</sup> week (or <sup>784vd</sup> week if the Extended Total Disability Benefit is selected) from the date of participation in the **Covered Activity** which caused the **Injury** and will continue to be paid for the remainder of the **Insured Person's** lifetime.

The Weekly Injury Permanent Impairment Benefit will be determined by multiplying the Weekly Disability Benefit amount payable on the 29th day of **Total Disability**, as determined under the Weekly Disability Benefits section of this policy, by the percentage value of the **Insured Person's Permanent Impairment**.

For example:

If the Total Disability Weekly Disability Benefit payable on the 29th day of **Total Disability** is \$600.00 and the **Insured Person's Permanent Impairment**, due to an **Injury**, percentage value is 70%, the lifetime Weekly Injury Permanent Impairment Benefit would be \$420 per week ( $\$600 \times 70\% = \$420$ ).

The **Permanent Impairment** rating used to determine the Weekly Injury Permanent Impairment Benefit is final upon initiation of Weekly Injury Permanent Impairment Benefits. Subsequent changes in the **Permanent Impairment** rating will not affect the Weekly Injury Permanent Impairment Benefits payable.

Weekly Injury Permanent Impairment Benefits will be paid in addition to any benefits payable under this policy.

## PART VI. MEDICAL EXPENSE BENEFITS – (INJURY ONLY)

### A. MEDICAL EXPENSE BENEFIT

If, as a result of a covered **Injury**, an **Insured Person** incurs medical expenses, **We** will pay the **Reasonable and Customary Expenses** for necessary:

- (1) medical, **Hospital** or surgical treatment;
- (2) “Home Health Care”; or
- (3) nursing services prescribed and monitored by a **Physician**.

**We** will pay the medical expense benefits subject to the **Policyholder's** choice of 1 or 2 below:

- (1) If “1” in the **Schedule** is marked with an “X”, **We** will pay any covered medical expenses incurred by an **Insured Person** in excess of benefits paid or payable under any Workers’ Compensation act, **VFBL**, **VAWBL** or similar law. If benefits are not payable under the applicable Workers’ Compensation act, **VFBL**, **VAWBL** or similar law, but are covered under this policy, **We** will pay such benefits.
- (2) If “2” in the **Schedule** is marked with an “X”, **We** will pay any covered medical expenses incurred by an **Insured Person** on a primary basis regardless of benefits paid or payable under any Workers’ Compensation act, **VFBL**, **VAWBL** or similar law or any **Other Valid and Collectible Insurance**.

**We** will also pay New York Mandated Benefits required by New York Insurance law to the extent that they are appropriate for the care and treatment of a covered loss sustained by an **Insured Person**.

Medical Expense Benefits are not payable for any **Illness**.

**We** will not pay more than the Medical Expense Benefit Maximum Amount shown in the **Schedule** for any one **Injury**.

**“Home Health Care”** - means those nursing and other home health care services provided to an **Insured Person** in his or her place of residence. “Home Health Care” must be:

- (1) performed by a “Home Health Care Practitioner”;
- (2) in lieu of confinement in a **Hospital** or nursing facility; and
- (3) pursuant to the orders of the attending **Physician**. Such attending **Physician's** orders must be written and include a plan of care which must be reviewed and approved by the **Physician**.

**“Home Health Care Practitioner”** - means a nurse, medical social worker, home health aide, physical therapist, or other medical practitioner. However, no provider will be considered a “Home Health Care Practitioner” unless such practitioner is:

- (1) duly licensed and/or certified in compliance with all applicable laws and regulations to provide the care received; and
- (2) not an **Insured Person** or an **Immediate Family Member**.

MERIDIAN WORKS

If an **Insured Person** requires skin grafting or plastic surgery due to an **Injury** for which Medical Expense Benefits are payable, **We** will pay the **Reasonable and Customary Expense(s)** incurred. **We** will not pay more than the Cosmetic Plastic Surgery Maximum Amount shown in the **Schedule** for any one **Injury**.

## C. POST-TRAUMATIC STRESS DISORDER BENEFIT

If, as the result of participation in a specific **Covered Activity** in which a **Traumatic Incident** occurred while coverage under this policy is in force, an **Insured Person** requires **Medical Treatment** for a **Post-Traumatic Stress Disorder**, **We** will pay the **Reasonable and Customary Expense(s)** incurred. Treatment must be prescribed and monitored by a **Physician**. **We** will not pay more than the Post-Traumatic Stress Disorder Maximum Amount shown in the **Schedule** for each **Insured Person** for any one **Covered Activity**.

## D. CRITICAL INCIDENT STRESS MANAGEMENT BENEFIT

If a "Critical Incident Stress Management Team" is requested and authorized by the **Policyholder** and is required as a result of the **Insured Person's** participation in a specific **Covered Activity** in which a **Traumatic Incident** occurred while coverage under this policy is in force, **We** will pay the reasonable expenses incurred by a "Critical Incident Stress Management Team". Covered expenses include, but are not limited to, the cost of necessary transportation, meals, and lodging. **We** will not pay more than the Critical Incident Stress Management Maximum Amount which is shown in the **Schedule** regardless of the number of **Insured** WINSLOW HOLDINGS

**"Critical Incident Stress Management Team (CISMT)"** - means a formally organized group of mental health professionals and peer support individuals trained to provide support services to emergency service personnel. Such support services include stress debriefing, defusing, demobilization, stress education, spousal support, one-on-one interviews, or on the scene support.

MARTIN THORNE

If an **Insured Person** is admitted to the **Hospital** as an inpatient due to a covered **Injury** or **Illness**, **We** will pay the Family Expense Benefit shown in the **Schedule** for each day of such **Hospital** confinement.

After such **Hospital** confinement, **We** will also pay 50% of the Family Expense Benefit shown in the **Schedule** for each day an **Insured Person** participates in **Out-Patient Physical Therapy** as a result of such **Injury** or **Illness**.

The Family Expense Benefit will be payable for a combined maximum of 26 weeks for any one **Injury** or **Illness** regardless of whether it is paid at 100% or 50%.

## F. FAMILY BEREAVEMENT AND TRAUMA COUNSELING BENEFIT

If an Accidental Death Benefit is payable under this policy or if an **Insured Person's** participation in a specific **Covered Activity** in which a **Traumatic Incident** occurred while coverage under this policy is in force and a **Dependent Child** or "Resident" **Immediate Family Member**, of an **Insured Person** requires counseling, **We** will pay the reasonable expense(s) incurred for counseling. Treatment must be prescribed and monitored by a **Physician**. **We** will not pay more than the Family Bereavement and Trauma Counseling Benefit Maximum Amount shown in the **Schedule** for each **Dependent Child** or "Resident" **Immediate Family Member** for any one **Covered Activity**.

**"Resident"** - means that the **Immediate Family Member's** domicile is at the home of the **Insured Person**. A domicile is where the **Immediate Family Member's** permanent home is located or the place the **Immediate Family Member** intends to return to after a short-term absence, such as, but not limited to; vacation, business assignment, college, military assignment.

## PART VII. CONTINUATION OF HEALTH INSURANCE PREMIUM BENEFIT

**We** will pay a benefit equal to the “Continuation of Health Insurance Premium”, up to the Continuation Health Insurance Premium Benefit Maximum Amount shown in the **Schedule** if:

- (1) as a result of **Injury** or **Illness**, an **Insured Person** becomes **Totally Disabled**;
- (2) **We** have paid six weeks of Total Disability Benefits under the policy; and
- (3) the **Insured Person** is responsible for his or her “Continuation of Health Insurance Premium”.

The **Insured Person** must submit to **Us** proof that the premium contribution was previously paid by the **Insured Person’s** employer or by the **Insured Person** himself or herself.

This coverage does not apply if the **Policyholder** provides health insurance benefits for the **Insured Person**. This benefit also does not apply for an **Insured Person** who is:

- (1) self-employed as described under item (4) of the **Average Weekly Wage** definition; or
- (2) an officer or a partner in any organization that purchases health insurance for the **Insured Person**.

**“Continuation of Health Insurance Premium”** means payments by the **Insured Person** to maintain employer-provided individual or family health insurance, after the employer paid premium or contribution becomes the responsibility of the **Insured Person**.

### IRONVALE WORKS

If an **Insured Person** suffers a covered **Injury** or **Illness** as a result of a “Felonious Assault” that is directed at the **Insured Person** while he or she is participating in a **Covered Activity**, and one or more of the following are payable: Accidental Death Benefit, Accidental Dismemberment and Paralysis Benefit, Vision Impairment Benefit, Injury Permanent Impairment Benefit, Illness Permanent Impairment Benefit or Cosmetic Disfigurement Resulting from Burns Benefit as provided by this policy, and the Felonious Assault Benefit is indicated in the **Schedule**, **We** will pay the Felonious Assault Benefit Amount.

**We** will not pay more than the Felonious Assault Benefit Amount shown in the **Schedule** per **Insured Person**.

“Felonious Assault” will not apply to a Police Officer while acting within the scope of his or her employment.

**“Felonious Assault”** - means any willful or unlawful use of force upon the **Insured Person**:

- (1) with the intent to cause bodily injury to the **Insured Person**; and
- (2) that results in bodily harm to the **Insured Person**; and
- (3) that is a felony or a misdemeanor in the jurisdiction in which it occurs.

## PART IX. HOME ALTERATION AND VEHICLE MODIFICATION BENEFIT

If an **Insured Person**:

- (1) suffers an **Injury** or **Illness** that is payable under this policy and which results in a permanent and irrevocable loss;
- (2) did not, prior to the date of the **Covered Activity**, require alterations to the home and/or modifications to the vehicle; and
- (3) as a direct result of such **Injury** or **Illness** is now required to make alterations to the home and/or modifications to the vehicle;

**We** will pay the Home Alteration and Vehicle Modification Benefit for “Home Alteration and Vehicle Modification Expenses” that are incurred within three years after the date of the **Injury** or **Illness**, up to the Home Alteration and Vehicle Modification Maximum Amount shown in the **Schedule**, for all such losses caused by the same **Injury** or **Illness**.

**We** will pay any “Home Alteration and Vehicle Modification Expenses” incurred by an **Insured Person** in excess of benefits paid or payable under any Workers’ Compensation act, **VFBL**, **VAWBL** or similar law and any **Other Valid and Collectible Insurance**.

“**Home Alteration and Vehicle Modification Expenses**” - means one-time expenses that:

- (1) are charged for:
  - (a) alterations to the **Insured Person’s** residence that are necessary to make the residence accessible and habitable for an impaired individual; and
  - (b) modifications to a motor vehicle owned or leased by the **Insured Person** or modifications to a motor vehicle newly purchased for the **Insured Person** that are necessary to make the vehicle accessible to and/or drivable by the **Insured Person**; and
- (2) do not include charges that would not have been made if no insurance existed; and
- (3) do not exceed the usual level of charges for similar alterations and modifications in the locality where the expense is incurred;

but only if the alterations to the **Insured Person’s** residence and the modifications to his or her motor vehicle are:

- (1) made on behalf of the **Insured Person**;
- (2) in compliance with any applicable laws or requirements for approval by the appropriate government authorities; and
- (3) agreed to and approved by **Us**.

## PART X. OPTIONAL BENEFITS

### A. WEEKLY HOSPITAL BENEFIT

If Weekly Disability Benefits are payable under this policy and the Weekly Hospital Benefit is indicated in the **Schedule**, **We** will also pay the Weekly Hospital Benefit shown in the **Schedule** if the **Insured Person** eligible to receive the Weekly Disability Benefits requires **Hospital** confinement or **Out-Patient Physical Therapy** for the same **Injury**.

The Weekly Hospital Benefit starts on the first day the **Insured Person** is confined to a **Hospital** or begins **Out-Patient Physical Therapy**. If benefits are payable for less than a full week, **We** will pay 1/7 of the Weekly Hospital Benefit shown in the **Schedule** for each day the **Insured Person** is confined in the **Hospital** or receives **Out-Patient Physical Therapy**. This benefit will be limited to a maximum of 104 weeks for all **Injuries** resulting from the same **Covered Activity**.

If the **Insured Person** is in an intensive or critical care unit, the Weekly Hospital Benefit Amount shown in

FAIRMOUNT SERVICE GROUP

IRONVALE WORKS

If an **Insured Person** becomes **Totally Disabled** and is eligible for Total Disability Benefits under this policy and the First Week Total Disability Benefit is indicated in the **Schedule**, **We** will pay a one-time additional weekly benefit equal to the First Week Total Disability Benefit Amount shown in the **Schedule** for the first week the **Insured Person** is **Totally Disabled**. If the **Insured Person** is **Totally Disabled** for less than one week, **We** will pay 1/7 of the First Week Total Disability Benefit Amount for each full day of **Total** Meridian **We** will pay the First Week Total Disability Benefit Amount in addition to any other weekly benefit payable under this policy.

TALLGRASS WORKS

If an **Insured Person** becomes **Totally Disabled** and is eligible for Total Disability Benefits under this policy and the Coordinated 28 Day Total Disability Benefit is indicated in the **Schedule**, **We** will pay 100% of the difference between the **Insured Person's Average Weekly Wage** and the sum of the Total Disability Weekly Amount (first 28 days) payable under this policy and any disability income benefits received by the **Insured Person** from any Workers' Compensation act, **VFBL**, **VAWBL** or similar law not to exceed the Coordinated 28 Day Total Disability Benefit Maximum Amount shown in the **Schedule**, for each week the **Insured Person** is **Totally Disabled**. This benefit is payable for the first 28 days of **Total** Meridian

If the **Insured Person** is **Totally Disabled** for less than one week, **We** will pay 1/7 of the Coordinated 28 Day Total Disability Benefit for each full day of **Total** Meridian

WINSLOW CONTRACTING

If an **Insured Person** is **Totally Disabled** and the Extended Total Disability Benefit is indicated in the **Schedule**, **We** will increase the maximum benefit period as indicated under the Total Disability Benefit from five years (260 weeks) to 10 years (520 weeks).

If an **Insured Person** meets the definition of **Long-Term Total Disability** and the Long-Term Total Disability Benefit is indicated in the **Schedule**, **We** will increase the maximum benefit period as indicated under the Extended Total Disability Benefit from 10 years (520 weeks) to age 70.

The Long-Term Total Disability Benefit amount payable will be based on the Weekly Disability Benefit Amount payable on the 29th day of **Total Disability**, plus annual compounded increases, offset by any Weekly Injury Permanent Impairment Benefit payable for the same loss.

The following paragraph is hereby added under Disability Benefits General as follows:

If an **Insured Person** becomes able to return to their regular occupation or becomes otherwise employed,  
HARBOR POINT CONTRACTING

## F. COST OF LIVING ADJUSTMENT (COLA) BENEFITS

- (1) **Weekly Injury Permanent Impairment COLA**
- (2) **Long-Term Total Disability COLA**

If Weekly Injury Permanent Impairment COLA or Long-Term Total Disability COLA Benefit is indicated in the **Schedule** and the Weekly Injury Permanent Impairment Benefit or the Long-Term Total Disability Benefit becomes payable under this policy, the amount payable will be increased annually after benefits have been paid for at least 52 consecutive weeks. Any increased benefit will become effective on July 1, following the first 52 week benefit period. Successive annual increases will be compounded on July 1 of each subsequent year. The increase will equal a minimum of 5% or the percentage increase in the **Consumer Price Index** for the preceding calendar year, whichever is greater, to a maximum of 10%.

## G. 24-HOUR ACCIDENT BENEFIT – INJURY ONLY

24-Hour Accidental Death Benefit. **We** will pay the 24-Hour Accident Benefit Amount shown in the **Schedule** if bodily injury to a **Covered Person** results in the **Covered Person's** death.

24-Hour Accidental Dismemberment and Paralysis or Vision Impairment Benefit. In the event of dismemberment, paralysis or vision impairment the amount payable under this benefit will be calculated based on the 24-Hour Accident Benefit Amount indicated in the **Schedule** and the percentage indicated in the Accidental Dismemberment and Paralysis Benefit or the Vision Impairment Benefit.

**We** will pay the 24-Hour Accident Benefit Amount, as described above, when a **Covered Person** suffers a bodily injury at any time, whether during a **Covered Activity** or not, other than during participation in a league sports event or any form of football, hockey, lacrosse, soccer, boxing, rugby, or martial arts, that results in the **Covered Person's** accidental death, dismemberment, paralysis or vision impairment. Any 24-Hour Accident Benefit payable is in addition to any Accidental Death Benefit, Accidental Dismemberment and Paralysis Benefit or Vision Impairment Benefit payable under this policy.

In no event will the total amount of benefits payable as a result of any one bodily injury exceed 100% of the largest Benefit Amount for a 24-Hour Accidental Death, and/or a 24-Hour Accidental Dismemberment and Paralysis and/or a Vision Impairment. **We** will not pay more than 100% of the 24-Hour Accident Benefit Amount shown in the **Schedule**, or the indicated percentage in the Accidental Death, Dismemberment and Paralysis Benefit per **Covered Person**, whichever is greater.

In no event will both, a 24-Hour Benefit and an Off-Duty Accident Benefit be provided under this policy.

## H. OFF-DUTY ACCIDENT BENEFIT – INJURY ONLY

Off-Duty Accidental Death Benefit. **We** will pay the Off-Duty Accident Benefit Amount shown in the **Schedule** if bodily injury to a **Covered Person** results in the **Covered Person's** death.

Off-Duty Accidental Dismemberment and Paralysis or Vision Impairment Benefit. In the event of dismemberment, paralysis or vision impairment the amount payable under this benefit will be calculated based on the Off-Duty Accident Benefit Amount indicated in the **Schedule** and the percentage indicated in the Accidental Dismemberment and Paralysis Benefit or the Vision Impairment Benefit.

**We** will pay the Off-Duty Accident Benefit, as described above, when a **Covered Person** suffers a bodily injury that does not occur during a **Covered Activity**, other than during participation in a league sports event or any form of football, hockey, lacrosse, soccer, boxing, rugby, or martial arts, that results in the **Covered Person's** accidental death, dismemberment, paralysis or vision impairment.

In no event will the total amount of benefits payable as a result of any one bodily injury exceed 100% of the largest Benefit Amount for an Off-Duty Accidental Death, and/or an Off-Duty Accidental Dismemberment and Paralysis and/or a Vision Impairment. **We** will not pay more than 100% of the Off-Duty Accident Benefit Amount shown in the **Schedule**, or the indicated percentage in the Accidental Death, Dismemberment and Paralysis Benefit per **Covered Person**, whichever is greater.

In no event will both, an Off-Duty Benefit and a 24-Hour Accident Benefit be provided under this policy.

## EXCLUSIONS

We will not cover any loss caused by or resulting from:

- (1) suicide or any attempt at it; or intentionally self-inflicted injuries;
- (2) injuries that happen while flying except;
  - (a) as a passenger on a commercial aircraft;
  - (b) as a passenger on any aircraft while taking part in a **Covered Activity**;
- (3) injuries that happen while flying as a crew member, or during parachute jumps from the aircraft;
- (4) war or any act of war, whether declared or undeclared;
- (5) mental or emotional disorders, except as specifically provided for covered **Post-Traumatic Stress Disorder**;
- (6) treatment of alcoholism or drug addiction and any complications arising from it, except loss caused by **Injury** sustained during and resulting from a **Covered Activity**;
- (7) illness, except as provided by this policy or;
- (8) military service of any state or country, except as provided by this policy.

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If the **Insured Person** is covered under more than one similar policy issued by **Us**, the total benefits payable will not exceed those payable under the policy which provides the largest benefit.

## GENERAL PROVISIONS

**Entire Contract; Changes:** The policy, application(s), riders, endorsements, amendments, or other attached papers make up the entire contract between the **Policyholder** and **Us**.

No change in this policy will be valid until approved by one of **Our** executive officers. Such approval must be noted on or attached to the policy. No agent may change or waive any of the provisions of the policy.

**Statements:** In the absence of fraud, all statements made by the **Policyholder** or any **Insured Person** will be considered representations and not warranties. No statement will be used to void the insurance or reduce benefits unless it is material, it appears in a written instrument signed by the **Policyholder**, and a copy of the statement is furnished to the **Insured Person**, his or her beneficiary or personal representative.

**Incontestability:** The validity of this policy will not be contested after it has been in force for two year(s) from the policy Effective Date shown in the **Schedule**, except as to nonpayment of premiums.

**Grace Period:** This policy has a 31 day grace period. This means if the premium is not paid on or before the date it is due, it may be paid during the following 31 days. During the grace period this policy will remain in force.

**Notice of Claim:** Written notice of claim must be given to **Us** within 30 days after a covered loss occurs, or as soon after as reasonably possible. The notice can be given by or on behalf of the **Insured Person** to **Us** at **Our** executive offices or to one of **Our** authorized agents with sufficient information to identify the **Insured Person**, will be deemed notice to **Us**.

**Claim Forms:** When **We** receive the written notice of claim, **We** will send the claimant forms for filing proof of loss. If such forms are not furnished before the expiration of fifteen days after **We** receive notice of claim under the policy, the claimant shall be deemed to have complied with the requirements of the policy as to proof of loss upon submitting within the time frame fixed in the policy for filing proof of loss, written proof covering the occurrence, character, and extent of loss for which the claim is made.

**Proof of Loss:** In the case of claim for loss of time for disability, written Proof of Loss must be given within 30 days after the commencement of the period for which **We** are liable. Subsequent written proof of continuing disability must be furnished to **Us** at intervals as **We** may reasonably require. For any other loss, **We** must be given written proof within 120 days after the loss. If it was not reasonably possible to give written proof in the time required, **We** will not reduce or deny the claim for this reason, if the proof is filed as soon as reasonably possible.

**Time of Payment of Claims:** Subject to our receipt of written proof of loss for other than loss of time, **We** will pay any benefits due within 60 days of receipt of due written proof of loss.. Benefits that provide for periodic payment will be paid at least monthly. When **Our** liability ends, **We** will pay any remaining balance as soon as **We** receive written proof of loss.

**Payment of Claims:** Any Accidental Death Benefit will be paid in accordance with the beneficiary designation on record with **Us** or the **Policyholder**.

If no beneficiary is named, Accidental Death Benefits will be paid to the first surviving class of the following classes: the **Insured Person's** (1) spouse; (2) child(ren); (3) parents; or (4) brothers or sisters. Otherwise, **We** will pay benefits to the **Insured Person's** estate.

All other benefits are payable to the **Insured Person**, unless otherwise indicated in this policy. **We** may pay all or a part of any benefits for health care services directly to the provider. **We** cannot require that the service be given by a certain provider.

Any payment **We** make in good faith will end **Our** liability to the extent of the payment.

**Physical Examination and Autopsy:** **We**, at **Our** expense, have the right to have the **Insured Person** examined as often as reasonably necessary while a claim is pending under this policy. **We** may also have an autopsy performed unless prohibited by law.

**Legal Actions:** No legal action may be brought to recover on this policy within 60 days after written proof of loss has been given as required by this policy. No such action may be brought after three years from the time written proof of loss is required to be given.

**Change of Beneficiary:** The **Insured Person** can change the beneficiary at any time by sending a written notice to the **Policyholder**. The beneficiary's consent is not required for this or any other change in this policy, unless the designation of the beneficiary is irrevocable.

**Conformity with State Statutes:** Any provision of this policy, which, on its effective date, is in conflict with the laws of the state in which the **Insured Person** resides on that date, is amended to conform to the minimum requirements of such laws.

**Clerical Error:** The insurance of any **Insured Person** will not be affected by a clerical error made by the **Policyholder** or **Us**. An error will not continue the insurance of an **Insured Person** beyond the date it would end under the policy terms if the error had not been made.

**Examination and Audit:** **We** will be permitted to examine and audit a **Policyholder 's** records relating to this policy at: (1) any reasonable time during the policy term; and (2) within two years after the expiration of the policy or until all claims have been settled or adjusted, whichever is later.

**New Entrants:** New eligible persons added from time to time to the group of **Insured Persons** originally insured under this plan will be automatically covered under this policy.

**Duty to Cooperate:** The **Policyholder** and the **Insured Person** will cooperate with **Us** and assist **Us**, as **We** request, in the investigation of any claim reported under this policy. Neither the **Policyholder** nor the **Insured Person** will voluntarily make payments, assume obligations, or incur expenses, except at the cost of the **Policyholder** or the **Insured Person**.

**Not In Lieu Of Workers' Compensation:** This policy is not a Workers' Compensation policy. It does not provide Workers' Compensation Benefits.

**Noncompliance with Policy Requirements:** Any express waiver by **Us** of any requirements of this policy will not constitute a continuing waiver of such requirements. Any failure by **Us** to insist upon compliance with any policy provision will not operate as a waiver or amendment of that provision.

**Misstatement of Age:** If the benefits for which the **Insured Person** is insured are based on age and the **Insured Person** has misstated his or her age, there will be an adjustment of said benefit based on his or her true age. **We** may require satisfactory proof of age before paying any claim.

**Assignment:** This policy is non-assignable. An **Insured Person** may not assign any of his or her rights, privileges or benefits under this policy.

# National Union Fire Insurance Company of Pittsburgh, Pa.

Administrative Office: 1271 Ave of the Americas, FL 37 | New York, NY 10020 | 212.458.5000  
(a capital stock company, herein referred to as the Company)

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## THIS ENDORSEMENT CHANGES THE POLICY PLEASE READ IT CAREFULLY

Policyholder: ASHCROFT BUILDERS, INC  
Policy Number: VFP-6921-87261R-8  
Effective Date: 5/14/2023

### **DOMESTIC PARTNERSHIPS ENDORSEMENT**

This Endorsement is issued in consideration of the premium paid and is attached to and made part of the Policy or Certificate as of the Effective Date shown above at 12:01 AM Standard Time at the address of the Policyholder. It applies only with respect to coverages that are in effect under the referenced Policy or Certificate on or after that date. Any changes in the premium apply as of the first premium due date on or after the effective date of this Endorsement. This Endorsement is subject to all of the provisions, benefits, limitations, and exclusions of the Policy or Certificate except as they are specifically modified by this Endorsement. If there is a conflict between the Policy or Certificate and this Endorsement, the terms of this Endorsement will govern. This Endorsement amends the Policy or Certificate in the following manner:

- The following is added to and made a part of the Policy or Certificate. It replaces any material pertaining to Domestic Partnership that may already be contained in the Policy or Certificate. This Endorsement amends the Policy or Certificate to provide coverage for Domestic Partnerships.

**Domestic Partner** means a person who has entered into a Domestic Partnership.

**Domestic Partnership** means an arrangement whereby two persons of the same or opposite sex have established a domestic or civil union relationship and who have submitted proof of such arrangement in the form of the following:

1. Registration as a Domestic Partnership indicating that neither individual has been registered as a member of another Domestic Partnership within the last six months, where such registry exists, or
2. For partners residing where registration does not exist, by:
  - a. an alternative affidavit of Domestic Partnership. The affidavit must be notarized and must contain the following
    - The partners are both eighteen years of age or older and are mentally competent to consent to contract.
    - The partners are not related by blood in a manner that would bar marriage under laws of the State of New York
    - The partners have been living together on a continuous basis prior to the date of the application;
    - Neither individual has been registered as a member of another Domestic Partnership within the last six months; and
  - b. Proof of cohabitation (e.g., a driver's license, tax return or other sufficient proof); and

c. Proof that the partners are financially interdependent. Two or more of the following are collectively sufficient to establish financial interdependence;

- joint bank account
  - joint credit card or charge card
  - joint obligation on a loan
  - status as an authorized signatory on the partner's bank account, credit card or charge card
  - joint ownership of holdings or investments, residence or of real estate other than residence
  - listing of both partners as tenants on the lease of the shared residence
  - shared rental payments of residence (need not be shared 50/50)
  - listing of both partners as tenants on a lease, or shared rental payments, for property other than residence
  - common household and shared household expenses, e.g., grocery bills, utility bills, telephone bills, etc. (need not be shared 50/50)
  - shared household budget for purposes of receiving government benefits
  - status of one as representative payee for the other's government benefits
  - joint ownership of major items of personal property (e.g., appliances, furniture)
  - joint ownership of a motor vehicle
  - joint responsibility for child care (e.g., school documents, guardianship)
  - shared child-care expenses, e.g., babysitting, day care, school bills (need not be shared 50/50)
  - execution of wills naming each other as executor and/or beneficiary
  - designation as beneficiary under the other's life insurance policy
  - designation as beneficiary under the other's retirement benefits account
  - mutual grant of durable power of attorney
  - mutual grant of authority to make health care decisions (e.g., health care power of attorney)
  - affidavit by creditor or other individual able to testify to partners' financial interdependence
  - other item(s) of proof sufficient to establish economic interdependency under the circumstances of the particular case.
- The definitions, terms, conditions or any other provisions of the Policy, including any Application, the Certificate, and/or any Riders and Endorsements to which this Endorsement is attached are hereby amended and superseded as follows:

Terms that mean or refer to a marital relationship, or that may be construed to mean or refer to a marital relationship, such as "marriage", "spouse", "husband", "wife", "dependent", "next of kin", "relative", "beneficiary", "survivor", "immediate family" and any other such terms include the relationship created by a Domestic Partnership.

Terms that mean or refer to the inception or dissolution of a marriage, such as "date of marriage", "divorce decree", "termination of marriage" and any other such terms include the inception or dissolution of a Domestic Partnership.

Terms that mean or refer to family relationships arising from a marriage, such as "family", "immediate family", "dependent", "children", "next of kin", "relative", "beneficiary", "survivor" and any other such terms include family relationships created by a Domestic Partnership.

The President and Secretary of National Union Fire Granite Row Granite Row of Pittsburgh, Pa., witness this  
Endorsement:



President



Secretary

# National Union Fire Insurance Company of Pittsburgh, Pa.

Administrative Office: 1271 Ave of the Americas, FL 37 | New York, NY 10020 | 212.458.5000  
(a capital stock company, herein referred to as the Company)

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**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## ENDORSEMENT

This endorsement, effective 12:01 A.M. 5/14/2023 forms a part of Policy No. VFP-6921-87261R-8 issued to  
ASHCROFT BUILDERS ASHCROFT BUILDERS ASHCROFT BUILDERS, INC by National Union Fire Granite Row Granite Row of  
Pittsburgh, PA.

## ECONOMIC SANCTIONS ENDORSEMENT

*This endorsement modifies insurance provided under the following:*

The Insurer shall not be deemed to provide cover and the Insurer shall not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose the Insurer, its parent company or its ultimate controlling entity to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union or the United States of America.



President



Secretary

**IMPORTANT NOTICE TO OUR CUSTOMERS  
REGARDING THE  
OFFICE OF FOREIGN ASSETS CONTROL ("OFAC")**

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Your rights as a policyholder and payments to you, any insured, additional insured, loss payee, mortgagee, or claimant, for loss under this policy may be affected by the administration and enforcement of U.S. economic embargoes and trade sanctions by the OFFICE OF FOREIGN ASSETS CONTROL ("OFAC").

The United States imposes economic sanctions against countries, groups and individuals, such as terrorists and narcotics traffickers. These sanctions prohibit US persons from dealing with these sanctioned parties. The purpose of this notice is to inform you that we cannot violate US sanctions by engaging with sanctioned countries or people.

**WHAT IS OFAC?**

OFAC is an office of the Department of the Treasury and acts under presidential wartime and national emergency powers, as well as authority granted by specific legislation, to impose controls on transactions and freeze foreign assets under U.S. jurisdiction. OFAC administers and enforces economic embargoes and trade sanctions primarily against:

- Targeted foreign countries and their agents
- Terrorism sponsoring agencies and organizations
- International narcotics traffickers
- Proliferators of Weapons of Mass Destruction

**PROHIBITED ACTIVITY**

- OFAC enforces certain embargoes and sanctions against designated countries. No U.S. business or person may enter into transactions involving designated "sanctioned" countries.
- OFAC publishes on its website a list known as the "Specially Designated Nationals and Blocked Persons" ("SDNBP") list. No U.S. business or person may enter into transactions involving any person or entity named on the SDNBP list.

Additional information about OFAC Sanctions Programs and Countries can be found at:

<http://www.treasury.gov/resource-center/sanctions/Programs/Pages/Programs.aspx>

**OBLIGATIONS PLACED ON US BY OFAC**

If we determine that you or any insured, additional insured, loss payee, mortgagee, or claimant are on the SDNBP list or are connected to a sanctioned country as described in the regulations, we must block or "freeze" property and payment of any funds transfers or transactions.

**POTENTIAL ACTIONS BY US**

1. We shall not be deemed to provide cover when it would violate any applicable sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union or the United States of America. You will not receive a return premium unless approved by OFAC. All funds will be placed in an interest bearing blocked account established on the books of a U.S. financial institution.
2. We will not pay a claim or provide any benefit to the extent that such cover, payment of such claim or provision of such benefit would violate any trade or economic sanctions, laws or regulations of the United States of America and we will not defend or provide any other benefits under your policy to individuals, entities or companies to the extent that it would violate any trade or economic sanctions, laws or regulations of the United States of America.

**YOUR RIGHTS AS A POLICYHOLDER**

If funds are blocked or frozen by us in conjunction with the OFFICE OF FOREIGN ASSETS CONTROL, you may complete an "APPLICATION FOR THE RELEASE OF BLOCKED FUNDS" and apply for a specific license to request their release. Forms are available for download at the OFAC website. See

<https://www.treasury.gov/resource-center/sanctions/Pages/forms-index.aspx>

**Edition Date: 5/2016**

## **POLICYHOLDER NOTICE**

Thank you for purchasing insurance from a member company of Fairmount Holdings, Inc. (AIG). The AIG member companies generally pay compensation to brokers and independent agents, and may have paid compensation in connection with your policy. You can review and obtain information about the nature and range of compensation paid by AIG member companies to brokers and independent agents in the United States by visiting our website at [www.aig.com/producer-compensation](http://www.aig.com/producer-compensation) or by calling 1-800-706-3102.

# **POLICYHOLDER NOTICE**

## **CHANGE TO INSURER'S ADDRESS**

Please be advised that all references to the address 1324 Maple Road, Warwick, NY 10990 contained in the Policy, Policy Declarations, riders, endorsements, and Policy notices are hereby deleted in their entirety and replaced with the following:

1271 Ave of the Americas FL 37, Monroe, NY 10950-9866

All other terms and conditions of the Policy remain the same.